

CONTRACT FOR PLUMBING WORKS

1. Appointment:

The Contractor hereby appoints the Sub-Contractor to provide services of all type of plumbing works on its behalf as detailed herein.

2. Scope of Work:

a. Installation:

- (i) Installation of water supply system.
- (ii) Installation and connection of plumbing fixtures like toilets, sinks, showers, tanks, etc and their associated pipings.
- (iii) Complete plumbing system installation for new buildings or additions.
- (iv) Installation of drainage, waste and vent systems.
- (v) Testing and commissioning of all plumbing systems.

b. Repairs, Renovations and Maintenance:

- (i) Undertaking all types of repairs, replacements and maintenance pertaining to plumbing and sanitary works.
- (ii) Detection and repair of any leaks in plumbing system.
- (iii) Replacement and re-routing of pipeline.
- (iv) Repair and replacements of plumbing fixtures such as toilets, sinks, showers, taps, tanks, etc.
- (v) Emergency plumbing response.
- (vi) Modifications to existing plumbing systems, including relocation of plumbing fixtures.

c. All the aforementioned services shall be provided by the Sub-Contractor to the client of Contractor only on the instruction and direction of the main contractor and under the supervision of the main contractor.

d. The work shall be performed as and when assigned by the main contractor as per the specific requirements of the projects and clients and as per the

drawings, plans and designs submitted, directed or instructed by the contractor or its client.

- e. The work shall be assigned by the main contractor as and when the project is finalized by contractor with the client.
- f. The work shall be carried out by Sub-Contractor as per the scope of work decided between the contractor and its client and the same is delegated to the Sub-Contractor.
- g. The list of services mentioned in above para 2(a) and 2(b) are indicative only. The scope of work may be increased, altered, modified, amended or reduced on the basis of type of project and to serve the individual need of client, as mutually agreed upon between the contractor and the Sub-Contractor.
- h. The Sub-Contractor shall provide only labour for the plumbing work. However, Sub-Contractor may also be required to provide aforementioned services alongwith material, if specifically requested by the Contractor and mutually agreed upon by the parties.

3. Period of appointment:

- a. The appointment is effective as of the date of this contract and will continue for one year until terminated by either party.
- b. The actual work on this assignment shall start with effect from the date of delegation of the work by the Contractor.
- c. This contract may be terminated before the completion of period of appointment as per the para 7 of this contract.

4. Responsibilities of Sub-Contractor:

- a. The Sub-Contractor shall be primarily responsible for performing all the plumbing work as per the scope outlined in para 2 of this contract.
- b. The Sub-Contractor shall be responsible for arranging all the resources such as suitable manpower / labour, tools, equipments, machinery and devices to complete the assigned work in timely manner.

- c. The Sub-Contractor shall also be responsible for purchase of material, supplies and products on the instruction of the Contractor, if mutually agreed upon between the parties to contract.
- d. The Sub-Contractor or his representative should be present at the site during the working hours and the Sub-Contractor shall always be available at request and case of emergency complaints or as and when directed.
- e. The Sub-Contractor shall make all genuine efforts and work in best possible manner to complete the assigned work without any delay at the satisfaction of the Contractor and its client.
- f. The Sub-Contractor shall not in any way directly involve with or try to solicit the client of the Contractor and shall not disclose the commercials of any work to the clients of the Contractor unless specifically permitted in writing by the Contractor.
- g. The Sub-Contractor shall be solely responsible to pay the dues of the workers appointed by him and are working under him.
- h. The Sub-Contractor shall ensure efficiency and effectiveness in the work assigned to him. The Sub-Contractor shall be responsible for any loss, defect, mistake or delay caused by his workers or team. The Sub-Contractor shall be responsible for the proper supervision, direction, guidance, management and punctuality of his employees working at any project site.
- i. The Sub-Contractor shall comply with the safety norms and labour laws while working at the site. The Sub-Contractor shall also be responsible to make arrangements for health insurance and life insurance of his workers, if required.
- j. The Sub-Contractor shall properly follow the instructions and directions if any given by the Contractor. The Sub-Contractor shall not ignore or avoid any specific directions or instructions related to work if any given by the Contractor.
- k. It shall be responsibility of the Sub-Contractor to regularly provide the progress report and work status of the project assigned to the Contractor.

- l. The Sub-Contractor or his team shall not engage in any dispute with the client of the Contractor. In case where differences arise between the Sub-Contractor and the Client, the Sub-Contractor shall duly inform the issue to the Contractor and the Contractor shall mediate in best possible manner to resolve the differences between both parties.
- m. The Sub-Contractor shall maintain a smooth communication channel with the Contractor and shall discuss / communicate all important aspects of his delegated work and project site with the Contractor. The Sub-Contractor shall also attend the work related meeting if called upon by the Contractor.

5. Location:

The location where the services to be performed shall be the project site which may be within or outside the city.

6. Payment Terms:

- a. The payment for the service provided shall be as mutually agreed upon between the parties on submission of a quote by the Sub-Contractor and approval of such quote by the Contractor.
- b. The payment shall be released to the Sub-Contractor as and when the Contractor receives the payment from the Client.
- c. The Sub-Contractor shall submit a valid bill as per the quote approved to claim his payment.
- d. The bill raised by the Sub-Contractor in case shall not be more than the proportion of work completed by him and the total project bill shall not be more than the quote approved in any case. If bills are raised in violation of this condition then the Contractor has right to reject such bill and stop the until a valid bill is submitted as per agreed terms and conditions.
- e. The bills for the materials purchased by the Sub-Contractor on the instruction of the Contractor shall be duly submitted to the Contractor and the Contractor shall be liable to the vendors for the timely payment of such bills.
- f. The payment may also be released in advance if mutually agreed upon between the parties.

- g. The Contractor shall discharge the payment as soon as possible without causing any unnecessary delay on receipt of a valid bill from the Sub-Contractor.
- h. A retention amount of 10% of the total contract value will be withheld. This retention amount will be held by the Contractor as security for the satisfactory completion of all work and fulfillment of all obligations under this contract. The retention amount will be released to the Sub-Contractor within 30 days following the date of completion of the assigned work, provided that all work has been completed in accordance with the contract, all defects have been rectified, and all other contractual obligations have been fulfilled.
- i. The Contractor shall deduct TDS from payments made to the Sub-Contractor as per applicable provisions of the Income Tax Act, 1961, and any other relevant tax laws. The TDS shall be deducted at applicable rates in force (Currently for individual / proprietor contractor it is 1% of contract value) and shall be deposited with government within stipulated timelines.

7. Termination:

- a. The Sub-Contractor is not permitted in any way to withdraw from this appointment or terminate this contract during the continuation of any delegated project / work or if the delegated project / work is not fully completed by Sub-Contractor to the satisfaction of the Contractor and its client.
- b. The Sub-Contractor is not allowed to leave the accepted project in between without completing it to the satisfaction of the Contractor and its client. If he withdraws from the project then in such case the damages or any loss caused to the Contractor due to delay or incomplete work, shall be borne by the Sub-Contractor.
- c. The Contractor may terminate this appointment if not satisfied with the work of Sub-Contractor.

8. Sub-Contracting:

The subcontractor may subcontract, either in part or in whole, the services authorized under this contract. The subcontractor shall be required to obtain a

written agreement from each subcontractor that is the same or comparable to the sections of this contract and approved, in writing, by the Contractor.

9. Insurance:

The subcontractor shall bear all responsibility for the actions related to themselves and their employees or personnel under this contract. In addition, the subcontractor agrees to obtain comprehensive liability insurance coverage in case of bodily or personal injury.

10. Resolution of Disputes:

All disputes and differences between the Parties hereto arising out of or relating to or in respect of or in connection with this Agreement (the "Dispute") including without limitation, the breach, termination or validity hereof shall be finally settled by Arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996 (the "said Act") by appointment of a Sole Arbitrator if both the Parties agree to such appointment and failing the appointment of the Sole Arbitrator by consent of the Parties, the appointment thereof shall be made in accordance with the provisions of the said Act. The Sole Arbitrator shall decide the dispute and pronounce award within six months of his appointment. The Sole Arbitrator shall be entitled to determine rules of procedure with the consent of the Parties.

11. Delays:

Should the Subcontractor delay the Contractor, or any other contractors, subcontractors, suppliers or materialmen on the entire project, the Subcontractor will indemnify the Contractor and hold the Contractor harmless for any damages, claims, demands, liens, stop notices, lawsuits, attorneys' fees, and other costs or liabilities imposed on the Contractor connected with said delay. Among other remedies for the Subcontractor's delay, the Contractor may supplement the Subcontractor's work and deduct associated costs at the Contractor's election.

12. Inspection of Services:

The Subcontractor shall make the Services accessible at all reasonable times for inspection by the Contractor. The Subcontractor shall, at the first opportunity, inspect all material and equipment delivered to the job site by others to be used or incorporated in the Subcontractor's Services and give

prompt notice of any defect therein. The Subcontractor assumes full responsibility to protect the work done hereunder until final acceptance by the Contractor or any authorized third (3rd) party.

13.Notices:

Any notice required under this contract shall be in writing and delivered personally, sent by registered post, or emailed to the addressee/email provided by each party.

14.Severability:

If any term, covenant, condition, or provision of this Agreement is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remainder of the provisions shall remain in full force and effect and shall in no way be affected, impaired, or invalidated.

15.Independent Contractor:

The Sub-Contractor is appointed as an independent contractor. Nothing in this contract shall be construed to create a relationship of employer-employee, partnership or joint venture between the parties.

16.Entire Agreement:

This contract represents the entire agreement between the parties and supersedes any prior written or oral representations.

17.Force Majeure:

Neither party shall be liable for any failure to perform under this Agreement when such failure is due to causes beyond that party's reasonable control including, but not limited to, acts of state or governmental authorities, acts of terrorism, natural catastrophe, fire, storm, flood, earthquakes, accident, and prolonged shortage of energy. In the event of such delay, any date stated herein shall be extended by a period of time necessary by both the parties. If the delay remains in effect for a period more than thirty (30) days, the Contractor has the right to terminate this Agreement upon written notice to the Subcontractor.

18.Governing Law and Jurisdiction:

This contract shall be governed by and construed in accordance with the laws of India. The courts in Panchmahal District, Gujarat shall have exclusive jurisdiction over any dispute arising out of or in connection with this contract.

IN WITNESS WHEREOF, the parties hereto have executed this contract as of date first written above.

**FOR AND ON BEHALF OF
PLUMTRIC ELECTRICAL AND PLUMB SOLUTIONS PRIVATE
LIMITED**

**SMIT KUMAR PATEL
DIRECTOR
DIN: 11190098
PLACE: HALOL**

Sub-Contractor Declaration

I am in agreement with the terms and conditions set out above.

**FOR, BHAVESHBHAI M. SANGADA
PLUMBING SUB CONTRACTOR
PAN: BWZPS4943J**